

26STCV17653 26STCV17653

County: los-angeles

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Case Number: 26STCV17653 Hearing Date: August 6, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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ONCAR FINANCIAL SERVICES, INC.,

Plaintiff(s),

vs.

CONTINUUM

ANALYTICS, et al.,

Defendant(s).

Case No.:

26STCV17653

Hearing Date:

August 6, 2026

[TENTATIVE]

ORDER RE: APPLICATIONS FOR WRIT OF ATTACHMENT

Oncar Financial Services, Inc. ("Plaintiff") seeks writs of attachment against defendants Continuum Analytics ("Continuum") and Mahender Makhijani ("Makhijani")(collectively, "Defendants").

The two unopposed applications are granted.

I.

Background

1. Factual Background

On August 1, 2022, Plaintiff executed two agreements: (a) with Continuum, a Promissory Note ("Note") stating the repayment terms for a \$5,000,000 loan ("Loan") extended the same day; and (b) with Makhijani, principal of Continuum, a guarantee of Continuum's performance and repayment under the Note ("Guarantee"). (Jalli Decl., ¶ 2, Exs. 1-2.) Under the Note, Continuum agreed to repay the Loan principal and interest within three months. (Jalli Decl., Ex. 1 at p. 1.)

Thereafter, the parties agreed to convert \$1,000,000 of the Loan principal into an investment in real property not otherwise related to this litigation. (Jalli Decl., ¶ 3.)

Continuum did not pay the loan off in full within the three-month period. (Jalli Decl., ¶ 5.) Continuum did, however, make periodic payments over the next three years, including \$200,000 total in 2022, \$450,000 total in 2023, \$400,000 total in 2024, and \$333,333.33 total in 2025. (Jalli Decl., ¶ 5.) Continuum made no payments from November 2025 through January 2026. (Jalli Decl., ¶ 6.) Continuum made a total of \$66,666.66 in payments in February and March 2026. (Jalli Decl., ¶ 9.) Makhijani likewise did not fulfill his Guarantee by providing any payments beyond what Continuum provided. (Jalli Decl., ¶ 7.)

2. Procedural History

On June 2, 2026, Plaintiff filed this action against Defendants for breach of the Note, breach of the Guaranty, and

common count. To date, neither Continuum nor Makhijani has filed an answer or made an appearance.

On July 2, 2026, the Court denied Plaintiff's ex parte application for right to attach orders against Defendants, but granted a Temporary Protective Order ("TPO") against Continuum only. The Court noted notice was deficient as to Makhijani. The Court ordered Plaintiff to post a \$10,000 undertaking before the TPO would issue. The Court further set a hearing on an application for writ of attachment against Continuum on regular notice, and likewise against Makhijani if Plaintiff properly noticed and served the appropriate documents, including the summons and complaint, on Makhijani.

On July 8, 2026, Plaintiff filed its \$10,000 undertaking for the TPO.

On July 9, 2026, Plaintiff filed the instant applications for writ of attachment against Defendants. Proofs of service filed July 9, 2026, show Plaintiff served the summons and complaint on Continuum by personal service on June 30, 2026 and on Makhijani by personal service on July 9, 2026. Further proofs of service filed July 9, 2026 show Plaintiff served the moving papers[1] for the instant applications on both Defendants on July 9, 2026 by personal service. To date, no opposition by either defendant has been filed. Any opposition was due no later than July 28, 2026. (CCP § 484.060(a).)

II.

Applicable Law

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought." (CCP § 484.010.)

The application shall be executed under oath and must include: (1) a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the

recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment. (CCP § 484.020.)

The application for a writ of attachment must be supported “by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (CCP § 484.030.)

The court shall consider the showing made by the parties, as well as the pleadings and other papers in the record. (CCP § 484.090(a), (d).) The Court shall issue a right to attach order if it finds all of the following:

“(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.”

(CCP § 484.090(a)(1-4).)

At the times prescribed by CCP section 1005, subdivision (b), the defendant must be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and supporting affidavits. (CCP § 484.040.)

“The Attachment Law statutes are

subject to strict construction....” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

III.

Analysis

1. Claim on Which Attachment Can Be Based

“[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (CCP § 483.010(a).) “An attachment may not be issued on a claim which is secured by any interest in real property arising from agreement” (CCP § 483.010(b).)

Here, Plaintiff's claims against Defendants are premised on its causes of action for breach of the Note and Guaranty. (Mem. at 7-8.) Plaintiff may seek attachment based on its breach claims.

2. Contract Based on a Commercial Claim

If the action is against a defendant who is a natural person, an attachment may be issued only on a commercial claim which arises out of the defendant's conduct of a trade, business, or profession. (CCP §483.010(c).) Consumer transactions cannot form a basis for attachment. (CCP §483.010(c); Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson (“Kadison”) (1987) 197 Cal.App.3d 1, 4 [action involving trust property was a commercial, not a consumer, transaction].)

As to Makhijani, he is the owner and principal of Continuum. (Jalli Decl., ¶ 2.) While Plaintiff makes only a conclusory showing that the Loan and Guaranty are commercial in nature (Jalli Decl., ¶ 3), the Court accepts this evidence as Makhijani has not opposed and as Continuum is a real estate investment firm (Jalli Decl., ¶ 3) and the parties' relationship is generally commercial in nature (see Jalli Decl., ¶ 3, Ex. 3).

Accordingly, the Court finds the claims are commercial in nature, not consumer.

3. Fixed or Readily Ascertainable Amount

A claim is “readily ascertainable” where the damages may be readily ascertained by reference to the contract and the basis of the calculation appears to be reasonable and definite. (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App.4th 537, 540-41.) The fact that the damages are unliquidated is not determinative. (Ibid.) But the contract must furnish a standard by which the amount may be ascertained and there must be a basis by which the damages can be determined by proof. (Ibid.)

Here, Plaintiff’s evidence shows that on August 1, 2022, the parties executed the Note and Guarantee for the \$5,000,000 Loan. (Jalli Decl., ¶ 2, Exs. 1-2.) Under the Note, Continuum agreed to repay the Loan principal and interest within three months. (Jalli Decl., Ex. 1 at p. 1.) Thereafter, the parties agreed to convert \$1,000,000 of the Loan principal into an investment in real property not otherwise related to this litigation. (Jalli Decl., ¶ 3.) Continuum did not pay the loan off in full within the three-month period. (Jalli Decl., ¶ 5.) Continuum did make payments over the next three years totaling \$1,383,333.33. (Jalli Decl., ¶ 5.) Continuum made no payments from November 2025 through January 2026. (Jalli Decl., ¶ 6.) Continuum made a total of \$66,666.66 in payments in February and March 2026. (Jalli Decl., ¶ 9.) Makhijani likewise did not fulfill his Guarantee by providing any payments beyond what Continuum provided. (Jalli Decl., ¶ 7.)

Plaintiff provides a separate calculation of remaining principal, fees, and interest showing Defendants now owe \$4,351,900. (Jalli Decl., ¶¶ 10-14.) This amount is readily ascertainable.

Plaintiff also estimates Oncar will incur \$500,000. Plaintiff provides only a bare assertion by its CEO supporting this amount.[2] (Jalli Decl., ¶ 10.) This amount is not readily ascertainable.

Accordingly, the total readily

ascertainable amount is \$4,351,900.

4. Probable Validity of Plaintiff's

Claims

"A claim has 'probable validity'

where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (CCP § 481.190.) "If the defendant opposes the application, 'the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.' [Citations.]" (Pech v. Morgan (2021) 61 Cal.App.5th 841, 855.)

Here, the application is based on

claims for breach of contract. To establish a claim for breach of contract, a plaintiff must prove: (1) existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1367.)

Here, as noted above, Plaintiff's

evidence shows that on August 1, 2022, the parties executed the Note and Guarantee for the \$5,000,000 Loan. (Jalli Decl., ¶ 2, Exs. 1-2.) Under the Note, Continuum agreed to repay the Loan principal and interest within three months. (Jalli Decl., Ex. 1 at p. 1.) Thereafter, the parties agreed to convert \$1,000,000 of the Loan principal into an investment in real property not otherwise related to this litigation. (Jalli Decl., ¶ 3.) Continuum did not pay the loan off in full within the three-month period. (Jalli Decl., ¶ 5.) Continuum did make payments over the next three years totaling \$1,383,333.33. (Jalli Decl., ¶ 5.) Continuum made no payments from November 2025 through January 2026. (Jalli Decl., ¶ 6.) Continuum made a total of \$66,666.66 in payments in February and March 2026. (Jalli Decl., ¶ 9.) Makhijani likewise did not fulfill his Guarantee by providing any payments beyond what Continuum provided. (Jalli Decl., ¶ 7.)

On January 8, 2026, Plaintiff

sent Defendants a notice of default and demand to cure by January 20, 2026. (Jalli Decl., ¶ 8.) Defendants did not cure or attempt to cure by January 20, 2026. (Jalli Decl., ¶ 9.)

Plaintiff has made a prima facie showing for breach of contract. Defendants do not oppose the applications. Accordingly, Plaintiff has shown the probable validity of its breach of contract claim.

5. Purpose of Attachment

The other required finding under CCP section 484.090 is that the “attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.” (CCP § 484.090(a)(3).)

Plaintiff declares that “[a]ttachment is not sought for a purpose other than the recovery on a claim upon which the attachment is based.” (App. ¶ 4.) Attachment is sought for proper purpose.

6. Bankruptcy

CCP section 484.020(d) requires a “statement that the applicant has no information or belief that the claim is discharged in a proceeding under Title 11 of the United States Code (Bankruptcy) or that the prosecution of the action is stayed in a proceeding under Title 11 of the United States Code (Bankruptcy).”

Plaintiff provides this statement. (App. ¶ 5.) This requirement has been satisfied.

7. Property Subject to Attachment

CCP section 487.010(a) states that, where the defendant is a corporation, all corporate property for which a method of levy is provided in CCP section 488.300 et seq. is subject to attachment.

Where the defendant is a natural person, the property to which attachment can apply are limited per CCP section 487.010(c).

Plaintiff seeks property

described as follows:

"All of the following types of property owned by Makhijani: real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit boxes, accounts receivable, general intangibles, property subject to pending actions, and final money judgments." (Apps. ¶ 9.)

This description is sufficient.

8. Claims of Exemption

No claims of exemption are sought.

9. Undertaking

CCP section 489.210 requires the plaintiff to file an undertaking before issuance of a writ of attachment. CCP section 489.220 provides, with exceptions, for an undertaking in the amount of \$10,000. Defendants do not object to the amount of the undertaking. Accordingly, the Court will order an undertaking in the amount of \$10,000.

IV.

Conclusion

Plaintiff's two applications for attachment against Defendants are GRANTED in the reduced amount of \$4,351,900. The undertaking will be \$10,000. See CCP §489.220. No writ shall issue against any defendant until Plaintiff posts the \$10,000 undertaking for that defendant.

Date: August 6, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if

they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Plaintiff does not provide a new memorandum of points and authorities or supporting declarations for the noticed applications, instead relying on its ex parte moving papers. According to the proofs of service on file, Plaintiff properly served these papers on Defendants along with the new applications.

[2]

Beyond this lack of support, LASC Local Rule 3.214 establishes a schedule governing the amount of reasonable attorney fees recoverable on amounts under a promissory note or contract. Under this rule, reasonable attorney fees recoverable on an action for \$4,351,000 under a promissory note are \$90,308 if contested, or \$45,400 if uncontested. (LASC Rule 3.214(a).)